

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index No.:
Date Purchased:

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MATTHEW CASTELLO,

Plaintiff,

-against-

**CITY OF NEW YORK and P.O. RAFAEL
DELACRUZ,**

Plaintiff designates New
York County as the place of
trial. The basis of venue is
CPLR §504(3).

SUMMONS

Defendants.

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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 1, 2020

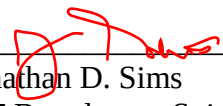
Defendants' Addresses:

CITY OF NEW YORK
Corporation Counsel
100 Church Street
New York, NY 10007

P.O. RAFAEL DELACRUZ, Shield #22206
c/o N.Y.P.D.
One Police Plaza
New York, NY 10007

Yours, etc.

SIEGLE & SIMS L.L.P.

By: 
Jonathan D. Sims
217 Broadway - Suite 611
New York, NY 10007
(212) 406-0110

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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MATTHEW CASTELLO,

Index No.:**Plaintiff,****VERIFIED COMPLAINT****-against-****CITY OF NEW YORK and P.O. RAFAEL
DELACRUZ,****Defendants.**
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To the above named Defendants:

Plaintiff, MATTHEW CASTELLO complaining of the defendants CITY OF NEW YORK (“CITY”) and P.O. RAFAEL DELACRUZ (“DELACRUZ”) herein, collectively (“defendants”) by and through his attorneys, SIEGLE & SIMS L.L.P., alleges the following upon information and belief:

1. At all times herein mentioned, defendant CITY was and is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

2. At all times herein mentioned, defendant DELACRUZ was and is a natural person who was employed by the New York City Police Department and was acting within the scope of and in furtherance of his employment therewith.

3. On or about October 16, 2019, before the commencement of this action, a Notice of Claim on behalf of the plaintiff, MATTHEW CASTELLO, was served in writing, sworn to by or on behalf of claimant/plaintiff, by delivering same by personal service upon CITY, which said Notice of Claim set forth the name and post office address of claimant and claimant’s attorneys, the notice of claim, the time when, the place where, and the manner in which the claims arose and the items of damages or injuries claimed to have been sustained as far as then practicable.

4. Said Notice of Claim was presented and delivered to CITY within ninety (90) days after the claims herein sued upon arose and before the commencement of this action.

5. On January 27, 2020, defendant CITY orally examined plaintiff MATTHEW CASTELLO and had an opportunity to physically examine MATTHEW CASTELLO.

6. This action was commenced within one year and ninety days after the causes of action herein arose, thirty (30) days have elapsed since the service of such claims were presented, and CITY has failed and refused to make an adjustment or payment of said claim.

7. On September 7, 2019, at approximately 5:45 p.m., plaintiff was lawfully present at Sixth Avenue and West 34th Street, in the County, City, and State of New York.

8. On that date and at that time, defendants arrested plaintiff MATTHEW CASTELLO, a natural person who resides in the County of Queens, State of New York.

9. During the arrest, defendants utilized excessive force and caused serious physical and emotional injuries to plaintiff.

10. Plaintiff MATTHEW CASTELLO had committed no crime, and there was no probable cause to arrest him.

11. Plaintiff did not resist the unlawful arrest and took no action which required defendants to utilize any physical force, much less the excessive physical force employed by defendants in his apprehension.

12. Plaintiff was prosecuted in the Criminal Court of the City of New York and on October 15, 2019, all charges against plaintiff were dismissed and sealed on the motion of the New York County District Attorney's Office on October 15, 2019.

AS AND FOR A FIRST CAUSE OF ACTION
ASSAULT

13. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 12.

14. The conduct of defendants, their agents, servants and/or employees detailed herein, including the use of force in arresting plaintiff, was done with the intent of placing plaintiff in fear of imminent harmful and offensive conduct and did in fact place plaintiff in fear of imminent harmful and offensive contact.

15. As a result, plaintiff MATTHEW CASTELLO suffered physical and emotional injuries.

16. As a result thereof, plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts that might otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
BATTERY

17. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 16.

18. The conduct of defendants, their agents, servants and/or employees detailed herein, including the use of force in arresting plaintiff, was intentional.

19. Plaintiff did not consent to the intentional touching of his body and person.

20. Such conduct by the defendants, their agents, servants and/or employees towards plaintiff constituted offensive bodily contact.

21. Defendants their agents, servants and/or employees conduct in forcibly arresting plaintiff was not reasonable under the circumstances.

22. As a result, plaintiff suffered physical and emotional injuries.

23. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
FALSE ARREST AND IMPRISONMENT

24. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 23.

25. On September 7, 2019, defendants their agents, servants and/or employees, arrested plaintiff, handcuffed him, took him into custody, and confined him.

26. Plaintiff was conscious of the arrest and confinement.

27. Plaintiff did not consent to the confinement.

28. The arrest and confinement of plaintiff was not otherwise privileged.

29. The arrest and confinement of plaintiff was without probable cause.

30. As a result, plaintiff suffered physical and mental injuries.

31. As a result thereof, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts that might otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
MALICIOUS PROSECUTION

33. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 32.

34. Defendants, their agents, servants and/or employees initiated a prosecution against plaintiff while having no probable cause to believe that plaintiff committed any crimes.

35. Defendants, their agents, servants and/or employees acted maliciously in initiating said prosecution against plaintiff.

36. The prosecution against plaintiff terminated in his favor.

37. As a result, plaintiff suffered physical and emotional injuries.

38. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO THE FOURTH AMENDMENT
(EXCESSIVE FORCE)

39. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 38.

40. Defendant DELACRUZ's actions in intentionally and forcibly causing the injuries suffered by plaintiff were in violation of the rights guaranteed plaintiff pursuant to the Fourth Amendment of the United States Constitution.

41. Defendant DELACRUZ's actions in forcibly arresting plaintiff were not reasonable under the circumstances.

42. The conduct and acts of defendant DELACRUZ were performed under the color of state law.

43. As a result of defendant DELACRUZ's conduct, defendant DELACRUZ violated plaintiff's civil rights and is liable to plaintiff pursuant to 42 U.S.C. §1983.

44. As a result, plaintiff suffered physical and emotional injuries.

45. As a result thereof, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts that might otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO THE FOURTH AMENDMENT
(FALSE ARREST AND IMPRISONMENT)

46. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 45.

47. Defendant DELACRUZ's conduct in arresting plaintiff without probable cause was in violation of the rights guaranteed plaintiff pursuant to the Fourth Amendment of the United States Constitution.

48. Such conduct was performed under color of state law.

49. As a result of his conduct, defendant DELACRUZ violated plaintiff's civil rights and

are liable to plaintiff pursuant to 42 U.S.C. §1983.

50. As a result, plaintiff suffered physical and emotional injuries.

51. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO THE FOURTH AMENDMENT
(MALICIOUS PROSECUTION)

52. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 51.

53. As set forth above, defendant DELACRUZ, his agents, servants and/or employees, under color of state law, commenced a criminal prosecution against plaintiff.

54. As set forth above, the prosecution ended in plaintiff's favor.

55. As set forth above, the prosecution of plaintiff was without probable cause.

56. As set forth above, defendant DELACRUZ, his agents, servants and/or employees maliciously initiated the prosecution.

57. As set forth above, as a result of the prosecution, plaintiff suffered a deprivation of liberty pursuant to the Fourth Amendment.

58. As a result of his conduct, defendant DELACRUZ violated plaintiff's civil rights and is liable to plaintiff pursuant to 42 U.S.C. §1983.

59. As a result, plaintiff suffered physical and emotional injuries.

60. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

WHEREFORE, plaintiff MATTHEW CASTELLO demands judgment against defendants CITY and DELACRUZ in a sum in excess of the jurisdiction of all lower courts which might otherwise have jurisdiction for each cause of action alleged, together with the costs

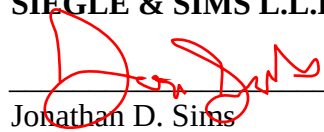
and disbursements of this action, including punitive damages and attorneys fees.

Dated: New York, New York
June 1, 2020

Yours, etc.

SIEGLE & SIMS L.L.P.

By:



Jonathan D. Sims
217 Broadway - Suite 611
New York, NY 10007
(212) 406-0110

VERIFICATION

STATE OF NEW YORK)
)ss.:
COUNTY OF Queens)

MATTHEW CASTLLO, being duly sworn, deposes and says: Deponent has read the foregoing VERIFIED COMPLAINT and knows the contents thereof to be true and the same is true to Deponent's own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters Deponent believes them to be true.


MATTHEW CASTELLO

Sworn to before me this
5th day of June, 2020


NOTARY PUBLIC

FRANCIS SHERIDAN
NOTARY PUBLIC-STATE OF NEW YORK
No. 01SH6352366
Qualified In Queens County
My Commission Expires 12-27-2020